

INTA Practice Guides Report

Trademark Enforcement Guide

China

SINGLE JURISDICTION REPORT

CONTRIBUTOR(S)

PENG Wei PENG, Beijing, Beijing, China

Xin Wei

I. Pre-filing Requirements/Demand Letters — A. Pre-filing Requirements/Demand Letters

- Although it is not mandatory to send a demand letter before instituting proceedings in this jurisdiction, it is common to send such a letter.
- Although it is not mandatory to attempt to settle with the other party before instituting proceedings in this jurisdiction, it is commonly done.
- Although it is not mandatory to engage in mediation or other alternative dispute resolution proceeding with the other party before instituting proceedings in this jurisdiction, it is commonly done.
- Before initiating an infringement proceeding, a party is required to take the following actions: none. Before initiating an infringement proceeding, a party may take the following actions: A party can apply for pre-filing injunctions against the infringing activity, assets preservation, and evidence preservation at court.
- The name for such a letter is: In Chinese, the letter is called a "cease and desist letter." The common English translation is "cease and desist letter."
- Such a letter should be sent at the following time: The cease and desist letter should be sent within the time limit for commencing litigation, which is three years from when the infringed party knows or should be aware of the infringing activity.
- Such a letter can be sent by: the owner of the mark; a licensee; an attorney for the owner of the mark (It is usually recommended that the cease and desist letter be sent by the attorneys representing the owner or licensee of the trademark.); an attorney for the licensee of the mark (It is usually recommended that the cease and desist letter be sent by the attorneys representing the owner or licensee of the trademark.).
- Specific rules/customary practices applicable to such letters include: the form or content of the letter (see below); the reasonableness of the demand; allowing sufficient time for response.
- With regard to the form or content of the letter, the following details are commonly included: identification of claimant; details of alleged rights infringed; identification of any trademark registrations owned by the objecting party; details of the alleged infringement; time for response; threat of legal action; request for undertaking; request for identification of customers and/or suppliers of products bearing the allegedly infringing mark (if applicable).
- The consequences of not following the particular rules/customary practices listed above when drafting the letter are: less effective communication and potential delay.
- The length of time within which to allow the recipient to respond to the letter that is considered reasonable is: Cease and desist letters usually require the recipient to stop the act immediately but allow the person to respond in writing within the specified period, usually between two and seven days, depending on the situation. Two days applies to urgent situations, for example.
- The following factors are taken into consideration when determining the length of

time that is considered reasonable: (i) the urgency of the situation of a particular case; and (ii) the practicality of obtaining a response within the designated time period.

- The benefits of sending a demand letter before initiating infringement proceedings rather than immediately initiating proceedings without sending a demand letter include: may help ascertain that infringement was inadvertent; may help ascertain that alleged infringer is impecunious and not worth suing; may help ascertain whether alleged infringer has meritorious defenses; results may be achieved more quickly and at lower cost; may provide a basis for a claim of willful infringement; may be viewed favorably in litigation by decision maker; may lead to negotiations and avoid the need to commence proceedings.
- The potential consequences of sending such a letter include: the possibility of the recipient's initiating infringement proceedings based on alleged prior rights; the possibility of the recipient's initiating proceedings for unjustifiable threat of infringement; destruction of evidence; adverse publicity and/or adverse social media response; loss of the element of surprise, giving infringer time and opportunity to prepare a defense.
- Factors to consider if a demand letter is sent and proceedings for infringement are not initiated include: the claim may be barred by time limits or statute of limitations; claims for tortious interference or restraint of trade may arise; loss of credibility in enforcement actions.

II. Claim for Infringement of a Registered Trademark — A. Claim for Infringement of a Registered Trademark

- There is more than one court system or administrative body that has jurisdiction over claims for infringement of a registered trademark (see below).
- The court system or administrative body that most frequently hears claims for infringement of a registered trademark is: Most claims will be heard (a) by the competent court having jurisdiction at the place of residence of the defendant (the amount of damages sought will decide which court can hear the case); (b) by the local market regulation authority having jurisdiction at the place of residence of the defendant; or (c) in the process of import or export, by the local Customs at the port of import or export. In general, a claim should be filed with the administrative body (options (b) and (c)) prior to the competent court (option (a)), as the court is the final resort.
- The other court system or administrative body that can also hear claims for infringement of a registered trademark is: a court or administrative body having jurisdiction at (a) the place of residence of the defendant; (b) the place where the alleged infringement occurred; or (c) the place where the alleged infringing products are stored or detained or the alleged damage occurred. The first is more frequently used, but the other two can also be used, if requested by the plaintiff.
- The following factors determine which court or administrative body can hear a case: place of alleged infringement; place where alleged damage occurred; residence of defendant; value of the claim; nature of the remedies sought.
- The following parties have standing/authority to institute proceedings for infringement of a registered trademark: the registered proprietor of a mark; an exclusive licensee (the owner/registered proprietor need not join in the proceedings); a non-exclusive licensee (the owner/registered proprietor need not join in the proceedings); a sole licensee (the owner/registered proprietor need not join in the proceedings). There are other conditions for an exclusive licensee and a non-exclusive licensee to institute the proceedings. An exclusive licensee can initiate the proceedings together with the owner/registered proprietor or in its own name

provided that the owner/registered proprietor does not want to file the proceedings. A non-exclusive licensee can initiate the proceedings only with the authorization of the owner/registered proprietor.

- If there is more than one registered proprietor/owner, they must all join in instituting the proceedings or authorize the other joint proprietor/owner to represent them in the proceedings.
- Trademark infringement proceedings are decided by a judge with no jury. A panel of three judges is usual, but there can be a single judge in summary proceedings.
- The time limit for initiating trademark infringement proceedings is: three years commencing from when the plaintiff knows or should be aware of the infringing activity.
- Once infringement proceedings are initiated, the stages of the proceedings include: filing of claim (including presentation of facts and legal arguments); filing of reply/defense to claim; filing of counterclaim; filing of evidence; mediation (Mediation during the proceedings is presided over by the court.); preliminary motions (to dismiss, for preliminary injunction or temporary restraining order); filing of briefs/written arguments; oral hearing; oral testimony/examination of witnesses; trial; judgment/decision.
- The average amount of time from initiating infringement proceedings through trial/final hearing is: between six months and one year. A trademark infringement case involving foreign parties could take longer because there is no statutory requirement on the period within which the proceeding shall finish.
- The average amount of time from the end of the trial/final hearing to the issuance of judgment is: up to three months.

III. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off — A. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off

- Unregistered trademarks are protected under the following laws: trademark statute; unfair competition statute.
- The following parties have standing/authority to institute proceedings for infringement of an unregistered trademark: the owner of the unregistered right.
- If there is more than one owner of an unregistered trademark, they need not all join in instituting the proceedings.
- It is possible to institute a single proceeding for both registered trademark infringement (under the trademark law) and unregistered trademark infringement (under the law(s) listed above).

IV. Civil Enforcement-- Emergency Measures — A. Ex Parte Injunctions

- Ex parte injunctions are available to claimants seeking emergency relief.
- When applying for an ex parte injunction, it is not necessary to institute infringement proceedings at the same time; however, the injunction applicant must institute the proceedings within 30 days after the court grants the injunction or the court will lift the injunction.
- The types of ex parte injunction available include: prohibitory (to prohibit the defendant from performing certain acts); mandatory (to require the defendant to perform certain acts); assets preservation (i.e., seize, detain or freeze the defendant's assets); evidence preservation (i.e., order to preserve potential evidence).
- The statutory or court-determined deadline for seeking an ex parte injunction is: The application must be filed within the time limit for initiating litigation, which is three years commencing from when the plaintiff knows or should be aware of the infringing

activity.

- A delay in applying for an ex parte injunction after becoming aware of the alleged infringing activities can prevent the applicant from obtaining the desired relief under the following circumstances: if the three-year time limit for initiating litigation has expired. However, even before the time limit has expired, whether it is sufficiently urgent to warrant granting the ex parte injunction is subject to the discretion of the competent court. Usually, the competent court will consider taking into account when the application for ex parte injunction is made. A delay in seeking the injunction remedy may have an effect on the applicant's ability to obtain such an injunctive remedy.
- The purpose of an ex parte injunction is: to restrain further infringing activities until trial or a further hearing; to obtain or preserve evidence; to ensure the effectiveness of the eventual remedy; to preserve the status quo; to prevent irreparable injury.
- The strategic benefits of obtaining an ex parte injunction include: it may put an end to the infringement and litigation quickly; putting the defendant at a strategic disadvantage at the beginning of the case; obtaining or preserving evidence; ensuring the availability of the requested remedy; ensuring the availability of compensation for damages; reducing potential damage caused by infringement.
- The risks of seeking an ex parte injunction (if it is not granted) are: increased costs of the proceedings; potential for a damages claim under a bond or cross-undertaking (i.e., an undertaking in damages); resolution of potentially dispositive issues on an incomplete or not-well-developed record (In China, it can be quite difficult to get an ex parte injunction, especially an injunction to stop the alleged infringing activities. The court usually reviews the substantial issue of the case before granting the injunction and will not grant the injunction unless it thinks that it is likely that infringement exists. If there is a record of unsuccessful ex parte injunction applications, the judge may be more cautious at the later proceeding.).
- An ex parte injunction remains in place: until a decision is made in the main proceedings; however, it is possible for the court to issue a verdict to sustain or lift the injunction during the main proceedings.
- The defendant is notified of the grant of an ex parte injunction: by the court.
- The procedure for applying for an ex parte injunction includes the following: motion; supporting memorandum/points and authorities of law; supporting affidavits or declarations; supporting documentary evidence; posting bond, cross-undertaking or other security.
- The amount of the bond or cross-undertaking is determined based on: the potential damage/losses to the defendant caused by an improvidently entered injunction.
- The factors considered in the granting of an ex parte injunction are: balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant or from the denial of the injunction; whether the status quo should be preserved; likelihood of success on the merits; the public interest favors entry of the injunction; urgency; defendant's ability to pay awarded damages; status of the trademark rights seeking protection.
- The following forms of evidence are admissible in support of an ex parte injunction application: written witness statements; documents; affidavits; samples of infringing product(s); supporting documents proving trademark rights or other rights.
- If the court later finds that the ex parte injunction was granted in error, the applicant will be required to: compensate the defendant for damages suffered from the injunction.
- The cost of obtaining an ex parte injunction, including attorney fees and court costs (but not including the cost of a bond), is approximately: between USD 10,000 and

50,000 (CNY 70,000 - 350,000).

- The costs of an ex parte injunction are recoverable as follows: as a part of the reasonable costs incurred by the infringed party in stopping the infringing activities if it wins the proceeding. How much is recoverable depends on the court's assessment as to what is "reasonable."
- On average, an ex parte injunction is issued within the following time period (counting from the filing of the application to the issuance of the injunction): less than two days. This is counted from when the court accepts the application for the issue of the injunction. It is difficult to give the time period from the filing of the application, as the court may ask the applicant to provide supplementary supporting documents if it deems it necessary before it officially accepts the application.
- In an ex parte proceeding, a party may not request an order to enter the premises of another party and to search for property/documents/items that may become evidence (i.e., a "search order" or "search and seizure order"). The plaintiff can apply to the court requesting it to collect evidence in the possession of the defendant, but the court has the discretion to decide whether to approve or reject the application. The parties cannot get an order to do this on their own.
- In an ex parte proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a "freezing order" or "freezing injunction").
- The grant of an ex parte injunction cannot be appealed to a higher court; however, upon application, the grant of such injunction can be reviewed once by the granting court.
- The denial of an ex parte injunction cannot be appealed to a higher court; however, upon application, the denial of such injunction can be reviewed once by the decision-making court.

IV. Civil Enforcement-- Emergency Measures — B. Interim Inter Partes Injunctions

- Interim inter partes injunctions are available to claimants seeking emergency relief.
- When applying for an interim inter partes injunction, it is necessary to institute infringement proceedings at the same time.
- The types of interim inter partes injunction available include: prohibitory (to prohibit the defendant from performing certain acts); mandatory (to require the defendant to perform certain acts); assets preservation; evidence preservation.
- There is no specified deadline for seeking an interim inter partes injunction. The statutory deadline for applying for evidence preservation injunctions is the end of the designated period for evidence submission.
- A delay in applying for an interim inter partes injunction cannot prevent the applicant from obtaining the desired relief as long as the court has time to take the required actions.
- The purpose of an interim inter partes injunction is: to restrain further infringing activities until trial or a further hearing; to prevent the consequences of an infringement or violation; to obtain or preserve evidence; to ensure the effectiveness of the eventual remedy; to preserve the status quo; to prevent irreparable injury.
- The strategic benefits of obtaining an interim inter partes injunction include: putting the defendant at a strategic disadvantage at the beginning of the case; obtaining or preserving evidence; ensuring the availability of the requested remedy; ensuring the availability of compensation for damages; reducing potential damage caused by infringement.
- The risks of seeking an interim inter partes injunction (if it is not granted) are: increased costs of the proceedings; potential for a damages claim under the bond

or cross-undertaking; resolution of potentially dispositive issues on an incomplete or not-well-developed record.

- An interim inter partes injunction remains in place: until a decision is made in the main proceedings. until further order by the court.
- The procedure for applying for an interim inter partes injunction includes the following: motion, with notice to all parties; supporting memorandum/points and authorities of law; supporting affidavits or declarations; supporting documentary evidence; hearing; posting bond, cross-undertaking or other security (The bond, cross-undertaking or other security may be required by court order.).
- The amount of the bond or cross-undertaking is determined based on: the potential damage/losses to the defendant caused by an improvidently entered injunction.
- The factors considered in the granting of an interim inter partes injunction are: balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant or from the denial of the injunction; whether the status quo should be preserved; likelihood of success on the merits; the public interest favors entry of the injunction; urgency; defendant's ability to pay awarded damages; status of the trademark rights seeking protection
- The following forms of evidence are admissible in support of an interim inter partes injunction application: written witness statements; documents; affidavits; samples of infringing product; supporting documents proving trademark rights or other rights.
- If the court later finds that the interim inter partes injunction was granted in error, the applicant will be required to: compensate the defendant for damages suffered from the injunction.
- The cost of obtaining an interim inter partes injunction, including attorney fees and court costs (but excluding the cost of a bond), is approximately: between USD 10,000 and 50,000 (CNY 70,000 - 350,000).
- The costs of an interim inter partes injunction are recoverable as follows: as part of the reasonable costs incurred by the plaintiff in stopping the infringing activities of the defendant, if the plaintiff wins the proceeding. How much is recoverable will depend on the court's assessment as to what are reasonable costs.
- It takes approximately the following length of time to obtain an interim inter partes injunction (counting from the filing of the application to the issuance of the injunction): less than 10 days.
- In an interim inter partes proceeding, a party may not request an order to enter the premises of another party to search for property/documents/items that may become evidence (i.e., a "search order" or "search and seizure order"). The court may collect evidence from the parties. The parties cannot get a court order to do so themselves.
- In an interim inter partes proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a "freezing order" or "freezing injunction").
- The determination on an application for an interim inter partes injunction can be made into a final decision on the merits (i.e., an interim inter partes injunction can be made permanent).
- The hearing on an interim inter partes injunction can be consolidated with the trial or final determination on the proceeding.
- The grant of an interim inter partes injunction cannot be appealed to a higher court; however, upon application, the grant of such an injunction can be reviewed once by the granting court.
- The denial of an interim inter partes injunction cannot be appealed to a higher court; however, upon application, the denial of such an injunction can be reviewed once by the decision-making court.

IV. Civil Enforcement-- Emergency Measures — C. Standards for Obtaining Inter Partes and Ex Parte Injunctions

- The standard for obtaining an interim inter partes injunction is the same as the standard for obtaining an ex parte injunction. However, the requirements are different. For example, posting bond, cross-undertaking or other security is required for an ex parte injunction but is not required for an interim inter parties injunction unless so required by court order.

V. Early Resolution of Litigation — A. Interim Applications Available for Ending Proceedings Early

- A party can seek to end proceedings prior to trial or final determination by interim applications for: summary judgment (judgment as a matter of law when facts are undisputed); striking out or dismissing a party's case on the pleadings.

V. Early Resolution of Litigation — B. Summary Judgment

- A party can conclude proceedings early by obtaining summary judgment in the following circumstances: there are no material factual disputes (The parties can provide evidence to support the factual issues and there is no need for the court to review the factual issues); there is no arguable case or defense (i.e., there is no reasonable prospect of the party's succeeding in the proceedings) (It is clear who is the owner of relevant legal rights and who has the legal obligations.); The parties have no substantial dispute as to who is right or wrong, who shall assume the liabilities and what is the subject matter of the proceeding.
- Summary judgment can be requested by the following parties: plaintiff; defendant. The court itself has the right to apply the summary judgement procedure if the conditions have been met.
- The applicant for summary judgment must: make an application to the court; obtain permission of the court.
- A ruling on a motion for summary judgment may never be appealed to a higher court; however, the parties may apply to the decision-making court for review of the ruling granting the summary judgment.
- A summary judgment may be appealed on the following grounds:

V. Early Resolution of Litigation — C. Trial of Preliminary Issue

- Proceedings cannot be expedited through an early trial or hearing on a preliminary issue. However, in China, pre-trial meetings are organized by the court to clarify the claims and defenses of the parties; arrange evidence collection, expert examination, evidence preservation; exchange the evidence; concentrate arguing points; organize mediation; etc. Pre-trial meetings are held at the discretion of the court in complex cases.

VI. Evidence — A. Evidence

- The following forms of evidence can be relied upon in support of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence (including samples/photos of allegedly infringing items); expert evidence; oral testimony; survey evidence; physical evidence, statement of the party, audiovisual evidence, electronic evidence. Please note that while oral evidence is admitted by the court if the witness attends the court hearing or, if he/she does not attend, provides a justified reason to the court, it is much less effective than physical evidence and other evidence.

- The following forms of evidence can be relied upon in defense of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence; expert evidence; oral testimony; survey evidence; physical evidence, statement of the party, audiovisual evidence, electronic evidence.
- A claimant must present or give notice of any evidence on which it will rely at a time set by the tribunal. The claimant may apply for an extension of time set by the tribunal if it has difficulty meeting the deadline; however, the tribunal has the right to approve and to decide on the extended deadline.
- A defendant must present or give notice of any evidence on which it will rely at the following time: The defendant may apply for an extension of time set by the tribunal if it has difficulty meeting the deadline; however, the tribunal has the right to approve and to decide on the extended deadline.
- A party to the proceedings may obtain information that is within the possession or control of another party to the proceedings: at the request of the party, but with the approval and assistance of the tribunal. Automatic "discovery," in the sense in which it is used in other countries, is not a part of Chinese proceedings, and evidence/information in the possession of the other party can be obtained only with the approval and assistance of the tribunal.

VII. Trial/Oral Hearing — A. Trial/Oral Hearing

- Evidence may be presented at the trial or oral hearing in the form of: written witness statements (including, e.g., affidavits, depositions, or statutory declarations); oral testimony of witnesses (uncommon due to the nature of a trademark infringement case, but still admissible and can be used if necessary); documents; surveys; physical objects; expert testimony; statement of the parties, audiovisual evidence, electronic evidence.
- It is possible to introduce surveys in evidence for the following issues: secondary meaning/acquired distinctiveness; whether a mark is famous or well known; likelihood of confusion; dilution; genericness; functionality.
- The use of survey evidence is subject to the following requirements: Survey evidence is subject to cross-examination by the other party.
- The length of an average trial or final hearing in a civil action for trademark infringement is: typically up to a half day, but it could be longer, depending on the complexity of the case.
- The nature of the proceedings is: inquisitorial, i.e., the decision maker controls the proceedings and the parties and their representatives have limited power. However, there are court investigations and court debates during the hearing.
- A trial or final hearing includes the following: introduction by judges; discussion of factual issues and/or evidence; discussion of legal issues; questions to parties; statements of parties; settlement proposal of judges.
- Witnesses are examined by: the judge; the lawyers.
- As part of trial preparation, the parties do the following: provide draft findings and conclusions if the proceeding is to be decided by a judge; provide a skeleton/outline of argument; submit marked exhibits; provide stipulations of fact; stipulate as to authenticity of documents; identify trial witnesses; consider possibility for settlement; attempt to mediate the dispute.

VIII. Judgment/Final Orders — A. Judgment/Final Orders

- It takes approximately the following amount of time for a decision to be handed down after trial or final hearing: The judge may either make a decision at the final

hearing or specify another time for handing down the decision. It could be one month after the final hearing or longer in the latter circumstance.

- The decision may be appealed within the following time frame: 15 days after receiving the judgment is usual, but for foreign parties with no residence in China, the appeal period is 30 days after receiving the judgment.
- Appealing a decision is of right; no permission is needed.
- There is only one court to which an initial appeal can be made, which is: the court immediately superior to the trial court.
- The appeal court reviews: both the facts of the case and legal issues.
- Further appeal is possible to the following court: If the party considers that the decision is erroneous, it may apply for retrial of the case at the court immediately superior to the appeal court by following the trial supervision procedure. In effect, it is an appeal by way of rehearing.
- Further appeal is not granted as a matter of right; permission is required.

IX. Post-Judgment Matters — A. Post-Judgment Matters

- A defendant has the following length of time to comply with an order issued in a judgment: The time period within which the defendant shall perform the judgment is usually specified in the judgment.
- A judgment may be enforced by way of the following proceeding(s): The proceeding is called Execution of a Judgment. The applicant can file an application requesting that the court execute the judgment within two years after the performance period specified in the judgment expires.

X. Costs of Litigation — A. General

- The types of costs that may be recovered by the prevailing party during/after legal proceedings include: attorney fees (The costs are a part of the expenses incurred by the claimant in stopping the infringing activity, and how much would be recovered would depend on the judge's determination on whether they are reasonable expenses.); court fees (The losing party is responsible for court fees.); expert fees (The costs are a part of the expenses incurred by the claimant in stopping the infringing activity, and how much would be recovered would depend on the judge's determination on whether they are reasonable expenses.); copying costs (for producing documents, in discovery, typically) (The costs are a part of the expenses incurred by the claimant in stopping the infringing activity, and how much would be recovered would depend on the judge's determination on whether they are reasonable expenses.); witness fees (for third-party witnesses) (The costs are a part of the expenses incurred by the claimant in stopping the infringing activity, and how much would be recovered would depend on the judge's determination on whether they are reasonable expenses.); costs incurred by a party or its witnesses (for travel, food, lodging or other expenses) (The costs are a part of the expenses incurred by the claimant in stopping the infringing activity, and how much would be recovered would depend on the judge's determination on whether they are reasonable expenses.).
- A range for the all-inclusive cost of a typical action for trademark infringement from filing of the claim through trial is as follows: between USD 20,000 and 50,000 (CNY 140,000 -350,000).
- The successful party in a trademark infringement claim can expect to recover a portion of the attorney fees incurred (as distinguished from damages awarded). See below.

- The average percentage of attorney fees incurred in a trademark infringement claim that a successful party can expect to recover is: unknown. How much would be recovered would depend on the judge's determination on whether they are reasonable expenses.
- Attorney fees are assessed using the following method(s): proof of attorney fees actually paid by the prevailing party; the standards on attorney fees issued by the relevant government authority and lawyers association.

X. Costs of Litigation — B. Security for Costs

- When initiating proceedings, a plaintiff is not required to provide security for any costs that may eventually be awarded against it. However, the plaintiff is required to pay the court fees in full when initiating the proceedings.
- A defendant is not required to provide security for costs after proceedings are initiated.

XI. Remedies — A. Remedies

- The following monetary remedies are available for trademark infringement: accounting of defendant's profits and actual damages; punitive damages; license fee/royalty; statutory compensation amount.
- Actual damages are assessed using the following methods: lost profits of plaintiff; damages to plaintiff.
- Where both are available, a party cannot choose whether to receive damages or an accounting of profits. The determination is made as follows: The following methods will be applied in sequence to determine the amount of damages; only if it is not possible to apply a particular method of calculating damages will the next method in the sequence be applied. actual damages suffered by the plaintiff; actual profit made by the defendant; license fee/royalty; statutory compensation amount.
- Determination of the type and amount of remedy is part of the trial on liability.
- The following non-monetary remedies are available for trademark infringement: injunctions; delivery up of infringing labels, packaging or products; destruction; removal or obliteration; corrective advertising; injunctions to stop the infringing activities; public apology.

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